Truth, Ethics, and Benefit: A Multi-Source Framework for Practical Deliberation

Continuation: Parts IV–VII, Turkish Executive Summary, Concept Map, Bibliography

> *This is the second installment of the project. The first installment ("Three Questions, Three Answers") committed to substantive answers on Parts I–III: Russellian correspondence theory of truth supplemented by classical* yaqīn*-discipline and Saʿīd Nursī's cumulative-case epistemology; moderate Ashʿarism (per Sherman Jackson's reassessment) bridging the is/ought gap via teleological anthropology; al-Shāṭibī's three-tier* maqāṣid *hierarchy supplemented by Tāhā ʿAbd al-Raḥmān's vital/rational/spiritual reorganization. The reader who has not seen that chapter should know that the present sections build on those commitments rather than restating them.*

Brief recapitulation of Parts I–III

Truth (Part I) is the correspondence of a judgment to what is the case (Bertrand Russell, *Problems of Philosophy*, ch. XII), epistemically accessed through five legitimate sources — well-conditioned sense, demonstrative reason, mass-transmitted report (*tawātur*), single-source report (*khabar āḥād*), and cumulative inferential cases of which Nursī's *Āyat al-Kubrā* is the paradigm — and graded as *yaqīn* (settled certainty), *ẓann* (probable opinion), or *shakk* (genuinely open). The committed reader practices *yaqīn*-discipline: he speaks with the certainty his evidence warrants and no more.

Ethics (Part II) cannot be deduced from bare facts (Hume's logical point in *Treatise* III.i.1 stands), but the bare-facts premise is a fiction: human beings are constituted with a function (*ʿubūdiyya*, *khilāfa*, *amāna* in the Qurʾān; *ergon* in Aristotle's *Nicomachean Ethics* I.7), and once that function is in view the gap closes. Reason discerns the broad outline of *ḥusn* and *qubḥ* — Sherman Jackson's *The Islamic Secular* (Oxford 2024) shows that even mature Ashʿarism granted this — but revelation is needed to fix the threshold cases, the ritual cases, and the ultimate horizon. Kant's categorical imperative is a real moral insight but cannot stand on its own foundation, since (per Tāhā ʿAbd al-Raḥmān's *Suʾāl al-Akhlāq*) every key term in the Kantian system is a substitution for a Pietist Lutheran theological term.

Benefit (Part III) is real, structured, and rankable, but it is not utility. Al-Shāṭibī's hierarchy

(*ḍarūriyyāt* → *ḥājiyyāt* → *taḥsīniyyāt*) protecting the five goods (*dīn*, *nafs*, *ʿaql*, *nasl*, *māl*) gives a tiered consequentialism with deontological side-constraints; Tāhāʼs reorganization into *vital*, *rational*, and *spiritual maṣāliḥ* prevents the framework from collapsing into sophisticated welfarism. The aversion of harm takes priority over the procurement of marginal good (*darʾ al-mafāsid muqaddam ʿalā jalb al-maṣāliḥ*); the certain outweighs the probable; and *niyya* re-qualifies the personal *maṣlaḥa* of any outwardly identical act.

These three answers are not three answers. The argument of Part IV is that they are three faces of one answer — and the face that holds them together is intention.

Part IV — Integration: Intention as Hinge

IV.1 Why intention has to do the binding work

A philosophically careful reader, having read Parts I–III, will notice a pattern. Each part ends with an *interior* condition. Truth requires *yaqīn*, which is not just a property of the proposition but a property of the knowerʼs relation to it. Ethics requires *niyya*, which is not the act but the actʼs inner direction. Benefit requires *qalbin salīm*, the soundness of heart that makes the calculus matter. Three exterior calculi, three interior conditions. Either this is a coincidence — three separate inwardness-requirements that happen to be juxtaposed — or it is a structural feature of practical deliberation that needs theorizing.

I claim it is structural. The three judgments do not float free of the agent who makes them. A judgment of truth is something a person does, and the doing has a direction. A judgment of ethics is something a person does, and the doing has a direction. A judgment of benefit is something a person does, and the doing has a direction. The direction is not separate from the judgment; it is part of what the judgment is. *And the same direction is at work in all three.* This is the thesis of Part IV.

Three texts give us the resources to develop it: the famous opening hadith of *Ṣaḥīḥ al-Bukhārī* (hadith 1) on *niyya*, Aristotleʼs analysis of *prohairesis* in *Nicomachean Ethics* III.2–3, and Edmund Husserlʼs account of intentionality in the fifth *Logical Investigation*. A fourth resource — Kantʼs *Gesinnung*, the disposition underlying particular maxims, treated in Book I of *Religion within the Boundaries of Mere Reason* — gives us the language for what happens when intention is corrupted at the deepest level.

IV.2 The niyya hadith, again, with attention to its structure

ʿUmar ibn al-Khaṭṭāb narrates from the Prophet Muḥammad:

> إِنَّمَا الْأَعْمَالُ بِالنِّيَّاتِ، وَإِنَّمَا لِكُلِّ امْرِئٍ مَا نَوَى. فَمَنْ كَانَتْ هِجْرَتُهُ إِلَى اللَّهِ وَرَسُولِهِ فَهِجْرَتُهُ إِلَى اللَّهِ وَرَسُولِهِ، وَمَنْ كَانَتْ هِجْرَتُهُ لِدُنْيَا يُصِيبُهَا أَوِ امْرَأَةٍ يَنْكِحُهَا فَهِجْرَتُهُ إِلَى مَا هَاجَرَ إِلَيْهِ.

> *Innamā al-aʿmālu bi-l-niyyāt, wa innamā li-kulli imriʾin mā nawā. Fa-man kānat hijratuhu ilā Allāhi wa-rasūlihi fa-hijratuhu ilā Allāhi wa-rasūlihi, wa-man kānat hijratuhu li-dunyā yuṣībuhā aw imraʾatin yankiḥuhā fa-hijratuhu ilā mā hājara ilayhi.*

> "Actions are only by intentions, and each person shall have only what he intended. Whoever's emigration was to God and His Messenger, his emigration is to God and His Messenger; and whoever's emigration was for some worldly thing he might gain or a woman he might marry, his emigration is to what he emigrated to." (*Ṣaḥīḥ al-Bukhārī* 1, *Kitāb Badʾ al-Waḥy*; *Ṣaḥīḥ Muslim* 1907, *Kitāb al-Imāra*.)

The hadith does three things at once. First, it makes the universal claim: *innamā* in classical Arabic is a particle of restriction (*ḥaṣr*) — actions are *only* by intentions, not partly, not usually, but only. The moral identity of an act is fixed by its inner direction; without the direction, the outward motion is not, in the relevant sense, the act at all. Second, it specifies the principle of distribution: each person receives only what he intended. The benefit is not external to the act but is correlated to the intention with which the act was performed. Third, it gives the paradigm case: two emigrants undertake the same outward journey, suffer the same hardship, arrive at the same destination — and yet their emigrations are two different emigrations, because the one is *to* God and His Messenger and the other is *to* what the agent wanted from it. The same physical motion is two morally distinct acts.

This third point is the one that matters for our purposes. The hadith is not saying that intention is a *factor* in moral evaluation alongside outward conformity to the law. It is saying that intention is *what makes the act the act it is*. The outward act is the matter (*mādda*); the intention is the form (*ṣūra*); the act is the composite. Without the form, you do not have an act of the relevant kind; you have raw matter that has not yet been morally individuated.

The implications for the three-question framework are immediate. A truth-claim made with the intention to deceive is not the same act as a truth-claim made with the intention to inform, even if the propositional content is identical. A morally permissible act done with the intention to harm is not the same act as the morally permissible act done with the intention to help. A beneficial outcome procured with the intention of self-aggrandizement is not the same outcome, in the morally relevant sense, as the same outcome procured with the intention of service. *Niyya* individuates.

IV.3 Aristotle on prohairesis: the structural ancestor

Aristotle anticipates much of this in *Nicomachean Ethics* III.2–3, in his analysis of *prohairesis* — usually translated "deliberate choice" or "decision," etymologically "fore-grasping" (literally, what one chooses *before* the act, with reasons).

In III.2 (1111b4–1113a14, in the standard Bekker pagination), Aristotle distinguishes *prohairesis* from neighboring concepts: it is not appetite (*epithymia*), because appetite

belongs to non-rational animals while *prohairesis* requires reason; it is not spirited desire (*thymos*), because spirit is reactive while *prohairesis* is deliberative; it is not wish (*boulēsis*), because wish can be for impossible things (one can wish for immortality) while *prohairesis* is only for what is in our power; and it is not opinion (*doxa*), because opinion is true or false while *prohairesis* is good or bad. *Prohairesis* is, in Aristotle's celebrated formulation, "deliberative desire" (*orektikē dianoia*) or "intellectual desire" (*orexis dianoētikē*) — the unity of right desire and right reason in the act of choice (NE VI.2, 1139a35).

Three features of *prohairesis* matter for us:

(1) *Prohairesis* is what makes an action voluntary in the full sense. A child or animal can act voluntarily in a thin sense — they move themselves, not being pushed — but only the rational adult who has *prohairesis* acts voluntarily in the sense relevant to moral evaluation. (NE III.2, 1111b6–10.) This parallels the *niyya* claim: outward motion without inner direction is not yet morally individuated action.

(2) *Prohairesis* is the proximate cause of the act, and it is what character is read from. Aristotle says explicitly: "We judge the character of a man by his *prohairesis* rather than by his actions" (NE III.2, 1112a1–3). The reason is structural: actions can be the product of accident, ignorance, or coercion; *prohairesis* reveals what the agent was *aiming at*, and what one consistently aims at is what one is.

(3) *Prohairesis* requires a *for the sake of which* (*hou heneka*). Aristotle says we deliberate not about ends but about the means to ends (NE III.3, 1112b11–16); the end is fixed by *boulēsis* (wish) directed toward the perceived good, and *prohairesis* concerns the route from the agent's current situation to that end. *Prohairesis* therefore presupposes a teleological context: the agent has a vision of what is good, and *prohairesis* is the deliberate selection of a path to it.

The structural mapping to *niyya* is striking. Both concepts: are interior; individuate the act; reveal character; presuppose a teleological context. But the differences matter too. *Prohairesis* is calibrated to a vision of the good developed through *paideia* (upbringing) within a *polis*; *niyya* is calibrated to a vision of the good developed through *tarbiya* and *taʿallum* under the framework of revelation. *Prohairesis* targets *eudaimonia* — human flourishing as activity in accordance with virtue. *Niyya* targets, ultimately, the divine countenance (*wajh Allāh*; cf. Q. 92:20, *illā ibtighāʾa wajhi rabbihi al-aʿlā*). The structures align; the substantive ends differ. This is the kind of cross-traditional resonance that allows an Aristotelian and a Muslim to recognize each other as doing the same kind of work, even when they disagree about what the work is for.

IV.4 Husserl on intentionality: the formal feature behind both

Edmund Husserl, in the fifth *Logical Investigation* (especially §§9–13, in the second volume

of the *Logische Untersuchungen*, 1900–1901), develops what becomes the central concept of twentieth-century phenomenology: *intentionality* — the directedness or "aboutness" of conscious experience.

Husserl borrowed and reformed the term from Franz Brentano, whose *Psychologie vom empirischen Standpunkt* (1874) had reintroduced the medieval scholastic concept of *intentio* (a mind-directed-toward-an-object) into modern philosophy. Brentano had claimed that intentionality — what he called the "intentional inexistence" (*intentionale Inexistenz*) of an object in the act — was the distinctive mark of mental phenomena: every mental act is *of* or *about* something, while no physical phenomenon is.

Husserl refines this. He distinguishes the *act* of consciousness (*Akt*), the *content* (*Inhalt*) or *meaning* (*Bedeutung*) by which the act is directed, and the *object* (*Gegenstand*) toward which the act is directed. The same object can be intended through different contents (the morning star and the evening star, in Frege's example, are both Venus); the same content can be exemplified in different acts (I can perceive, remember, imagine, or judge the same proposition). The crucial Husserlian claim is that consciousness is *always already* directed: there is no neutral, content-less consciousness onto which content gets added. To be conscious *is* to be conscious-of-something.

Why does this matter for *niyya*? Two reasons.

First, Husserl gives us the formal grammar for what *niyya* is doing. *Niyya* is not a separate mental act layered on top of action; it is the directedness of the action itself. To act *is* to act-toward-something. The hadith's claim that "actions are only by intentions" can be glossed in Husserlian terms: actions just *are* their intentional directedness. There is no act lying behind the intention; the intention is the act, considered as a directed structure.

Second — and this is the crucial qualification — Husserl's intentionality is *formal* and *morally thin*. A mind directed toward sugar in tea, a mind directed toward the truth of the Pythagorean theorem, and a mind directed toward the pleasure of revenge are all equally intentional in the Husserlian sense. The directedness is the structural feature; the moral character of the directedness is a further question. *Niyya* in the Islamic tradition is not the formal property of being directed; it is the *moral quality* of the direction — toward God or away from Him, toward what He has commanded or away from it, toward sincere service or toward self-display (*riyāʾ*).

So the mapping is: *Husserlian intentionality is the genus; niyya is a species within it*. Every act has intentionality (formal directedness); not every act has a sound *niyya* (morally well-ordered directedness). The committed reader can use Husserl's analysis to make the structural point — that direction is constitutive of action, not external to it — without committing to Husserl's transcendental-phenomenological apparatus. The point survives the apparatus.

Maurice Merleau-Ponty's *Phenomenology of Perception* (1945) develops the embodied dimension of intentionality, and Charles Taylor's later work on "strong evaluation" (*Sources of the Self*, 1989) develops the morally thick version, where direction toward incommensurable goods is constitutive of selfhood. These are useful supplements for the reader who wants to see how Western phenomenology, on its own internal trajectory, moves toward a position structurally close to *niyya*. They cannot quite reach *niyya*, because *niyya* requires the further step of orientation toward a transcendent end; but they reach the doorstep.

IV.5 Kant on Gesinnung: when intention is corrupted at the root

Kant's *Religion within the Boundaries of Mere Reason* (1793), Book I, introduces the concept of *Gesinnung* — variously translated as "disposition," "fundamental orientation," or "ground-maxim" — to address a problem that the *Grundlegung* alone could not solve. In the *Grundlegung*, Kant argued that moral worth attaches to action done from duty, where the maxim of the action could be willed as universal law. But what happens when an agent consistently fails to act from duty even though he knows what duty requires? Kant cannot say merely that the agent has bad maxims; that would be a description of the symptoms, not the disease. He needs an account of the *deeper* level at which maxims themselves are adopted.

Gesinnung is that deeper level. It is the agent's fundamental disposition with respect to the moral law — whether the agent has, at the root of his maxim-formation, made the moral law his supreme principle of choice (and is then liable to lapses) or whether he has, at the root, made self-love his supreme principle (and merely conforms to the moral law when convenient). The two *Gesinnungen* — the good and the corrupt — are not gradients on a spectrum but mutually exclusive orientations. An agent cannot simultaneously have both. And the corruption of the *Gesinnung*, Kant argues in the famous passages on radical evil (*das radikal Böse*, AA 6:32–39), is what Christian theology has called original sin — a propensity to subordinate the moral law to self-love that is *imputable* to the agent (so it is moral, not merely natural) but is also so deep that the agent cannot extirpate it by his own powers alone.

I do not endorse Kant's full doctrine of radical evil; the Islamic tradition's anthropology of *fiṭra* — the original constitution oriented toward *tawḥīd*, which is then overlaid by *ghafla* (heedlessness), *hawā* (lower desire), and *kibr* (pride) but not corrupted at the root in Kant's sense — is more accurate to the human phenomenon and to the textual evidence. But Kant's structural insight is correct: *there is a level of intention deeper than the intention to perform a particular act.* Beneath every particular *niyya* is the standing orientation of the agent — what the Sufi tradition has called the *ḥāl* (state) and beyond it the *maqām* (station) of the heart. A person whose standing orientation is toward God brings sound *niyya* even to small, mundane acts (eating, sleeping, working) because the underlying *Gesinnung* is intact. A

person whose standing orientation is toward self brings corrupt *niyya* even to acts that look religiously perfect from the outside, because the underlying disposition shapes the particular intention from below.

This deeper layer is what makes the *niyya*-check non-trivial. The committed reader cannot satisfy the niyya-check merely by *thinking* the right thing before the act. He has to attend to whether his standing orientation supports the intention he claims. A person can sincerely claim, in the moment, that he is performing an act *li-wajhi 'llāh* (for the face of God) while his standing orientation is in fact organized around the social reward he expects. The classical Sufi diagnostic literature — al-Muḥāsibī's *al-Riʿāya li-Ḥuqūq Allāh*, al-Ghazālī's "Book of the Marvels of the Heart" (*ʿAjāʾib al-Qalb*) in the *Iḥyāʾ*, Ibn ʿAṭāʾ Allāh's *al-Ḥikam* — exists precisely to expose this gap and to train the agent to close it.

IV.6 The integration thesis, stated

We have now assembled the materials. The thesis of Part IV is this:

> The three judgments of Parts I–III — truth, ethics, benefit — are three irreducible moments of one deliberative act. They are bound together because every act of deliberation is performed by an agent whose intentional orientation (*niyya*, *prohairesis*, *Gesinnung*) is constitutive of the deliberation, not external to it. The integration is not achieved by deductive reduction (Parts I–III have already shown that this fails) but by the structural fact that one and the same agent, with one and the same standing orientation, is doing all three things simultaneously when he asks "what should I do?"

A practical illustration. Suppose the question is whether to take a particular job. Three sub-questions:

- *Is it true that this job will allow me to support my family, develop my skills, and contribute to a worthwhile enterprise?* (Truth-question; engages sense, reason, and testimony from those who know the employer.)
- *Is it ethical to take this job — i.e., does the work involved violate any moral or revealed law, and can I perform it with integrity?* (Ethics-question; engages reason and revelation.)
- *Is it beneficial to take it — what does it do to the protected goods of myself, my family, my community?* (Benefit-question; engages the *maqāṣid* hierarchy.)

If the agent answers the three questions in isolation, he gets three answers that may or may not cohere. But the agent does not in fact answer them in isolation: he answers them simultaneously, from inside the orientation he brings to the question. If his standing orientation is toward financial security above all, the truth-question gets shaped by what he wants to believe (the salary is real; the ethical concerns will probably not arise; the benefits

are clear), the ethics-question gets answered minimally (anything that is not *clearly* forbidden is taken as permitted), and the benefit-question gets calibrated to a flat material scale. If his standing orientation is toward the divine countenance, the same three questions get answered with attention to evidential discipline, with attention to the spirit and not just the letter of the law, and with attention to the spiritual *maṣāliḥ* alongside the vital and rational ones.

The point is not that one orientation is "religious" and the other "secular." Both orientations are operative in every agent, and the question is which one is *governing* in the specific case. The point is that the three judgments do not stand independent of the agent's orientation, and so they cannot be integrated by a procedure that abstracts from the agent. They can only be integrated by attending to the agent's orientation directly — that is, by making the *niyya*-check part of the procedure.

IV.7 The six falsifiable commitments

The framework, on this account, makes six commitments precise enough to be tested. If any of these is shown to fail in a wide range of cases, the framework needs revision.

Commitment 1. *A judgment of moral rightness that ignores truth-conditions is defective.* If an agent declares an act morally right while resting on factual claims he has not properly tested, the moral judgment is suspect. This rules out moral confidence built on rumor, partisan information, or wishful thinking. It also makes truth-discipline a *moral* duty, not merely an intellectual one — which is what W. K. Clifford insisted on in "The Ethics of Belief" (1877) and what the Qurʾān's command *wa-lā taqfu mā laysa laka bihi ʿilm* ("do not pursue what you have no knowledge of," Q. 17:36) requires.

Commitment 2. *A truth-claim pressed into action with weak evidence must be marked ẓann, not yaqīn.* The agent who acts on probable opinion is acting permissibly only if he acknowledges, to himself and to others, the probabilistic status of his ground. Acting on *ẓann* while *speaking* with the language of *yaqīn* is a structural lie, even if the underlying claim happens to be true. This commitment grounds the *yaqīn*-discipline that Part I recommended; without it, that discipline has no normative bite.

Commitment 3. *Benefit assessment cannot define the good; it can only inform it.* The maqāṣid-calculus tells you, given a settled vision of human flourishing, what serves and what undermines that flourishing. It does not, by itself, deliver the vision. To use the calculus to *generate* the conception of the good is to slide into the utilitarianism that Part III rejected. The vision comes from elsewhere — from the teleological anthropology that Part II articulated.

Commitment 4. *Intention is always morally relevant, never sufficient on its own.* A sincere intention does not make a wrong act right. A person who steals out of compassion has still

stolen; a person who lies out of love has still lied. The hadith *innamā al-aʿmālu bi-l-niyyāt* establishes that intention is *necessary* for the act to count as the moral act it appears to be; it does not establish that intention is *sufficient* to license any outward conduct. This commitment guards against the antinomian misreading of the niyya-doctrine that treats inner orientation as the only thing that matters.

Commitment 5. *Source conflicts must be resolved by public rules, not charismatic intuition.* When revelation, reason, sense-experience, and conscience appear to conflict on a given case, the resolution must be reached by procedures that another competent inquirer could replicate and challenge — the procedures of *uṣūl al-fiqh*, of philosophical argument, of the careful weighing of *ẓunūn*. It cannot be reached by appeal to the agent's private conviction that he sees what others do not. This commitment guards against the abuse of "conscience" as a trump card and against the abuse of "spiritual insight" as a license to override public norms.

Commitment 6. *Persistent qualified disagreement is itself a meaningful output, not an error state.* When competent reasoners working from the same framework reach divergent conclusions on a hard case, the framework's honest output is "qualified disagreement," not a forced verdict. This is not skepticism; it is calibration. The example of organ donation (Part V.d) will show this commitment doing real work.

These six commitments are testable. Each can be evaluated against actual cases. If, across a wide range of cases, the application of the framework is consistent with these commitments, the framework is in good shape. If not, the framework needs revision. The next part — the stress tests — does some of that evaluation.

Part V — Stress Tests

A framework that has not been stressed against hard cases is a framework whose strength is unknown. What follows is an honest attempt to apply the synthesis to six pressure points. I will report what holds, what strains, and what fails.

V.1 Hume's formal challenge

The challenge: from premises composed entirely of factual statements, no purely normative conclusion follows by strict deduction. (Hume, *Treatise* III.i.1; formally proven in Charles Pigden, *Hume on Is and Ought*, Palgrave Macmillan, 2010.)

The framework's response, as developed in Part II: concede the formal point, deny the descriptive premise. Hume's challenge presupposes that human beings can be described in purely factual terms, with normative conclusions then sought as deductive consequences. But the human being is not first described and then evaluated; the human being shows up in

experience already as a bearer of function, role, telos. Aristotle's *ergon* argument and the Qurʾanic *ʿubūdiyya/khilāfa/amāna* schema both reject the descriptivist premise from the start.

Does the response hold? *On Hume's own terms, no — and this is the honest report.* A committed Humean naturalist who insists on purely descriptive premises cannot be brought across the gap by argument; he can be invited to consider whether his descriptive premises are actually as neutral as he supposes, but if he insists on the impoverished description, he can consistently refuse the bridge. The argument with him is over the *first* premise (whether the human can be described in purely descriptive terms), not over the *deduction* (which is valid).

This is a real limitation. The framework cannot demonstrate to a determined Humean naturalist that he should accept teleological premises. What it can do is show that *most* people, including most Humeans in practice, do in fact reason from teleological premises whenever they make actual moral judgments — and that the descriptivist self-presentation is therefore a misleading philosophical posture rather than an accurate report on how moral reasoning works. Alasdair MacIntyre's "Hume on 'Is' and 'Ought'" (*Philosophical Review* 68:4, 1959, pp. 451–468) makes exactly this case against Hume's own moral writing, showing that Hume himself smuggles teleological premises (about human nature, sympathy, the function of social institutions) into his arguments.

Verdict: The framework holds for everyone except the strict descriptivist naturalist, and even there it can show the naturalist that his self-presentation is inconsistent with his practice. This is a substantial result, not a complete refutation.

V.2 The Ashʿarī/Muʿtazilī meta-ethical debate

The challenge: are good and evil intrinsic properties of acts, knowable by reason (Muʿtazilī), or are they conferred by divine command (Ashʿarī)? The framework committed in Part II to a "moderate Ashʿarism" following Sherman Jackson's reassessment. Does the commitment survive the actual debate?

The Muʿtazilī case is at its strongest in ʿAbd al-Jabbār's *al-Mughnī fī Abwāb al-Tawḥīd wa-l-ʿAdl*, vol. VI/1 (*al-Taʿdīl wa-l-Tajwīr*). Sophia Vasalou's *Moral Agents and Their Deserts: The Character of Muʿtazilite Ethics* (Princeton University Press, 2008) translates and analyzes the key arguments. ʿAbd al-Jabbār's central case has three pillars: (1) we recognize gratitude to a benefactor as obligatory before any divine command tells us so, which shows that reason discerns at least some moral truths directly; (2) if morality were *entirely* a matter of divine command, the proposition "God is just" would have no content — *ʿadl* would just mean "whatever God does," which trivializes it; (3) if God could command what is rationally evil, He would be commanding evil, which contradicts His justice.

The Ashʿarī response, in al-Ashʿarī's *Kitāb al-Lumaʿ* and developed in al-Bāqillānī, al-Juwaynī, and al-Ghazālī, accepts (1) in a qualified sense: humans do recognize benefit and harm, justice and injustice, gratitude and ingratitude through reason. What they deny is that this rational recognition by itself generates *moral obligation* in the religious sense. The obligation arises through the divine address (*khiṭāb al-Sharʿ*); reason recognizes the act's character but does not impose binding obligation prior to revelation. On (2), they distinguish *ʿadl* in the human sense (giving each what is owed under a recognized authority) from *ʿadl* as predicated of God (whose acts are by definition just because no one stands in a position of authority over Him). On (3), they bite the bullet: God could in principle command anything, and the safeguard is His attribute of *ḥikma* (wisdom), which means His commands always serve recognizable ends — but this is a feature of God's nature, not a constraint on Him.

Sherman Jackson's "The Alchemy of Domination? Some Asharite Responses to Mutazilite Ethics" (*International Journal of Middle East Studies* 31:2, 1999, pp. 185–201) and his more recent *The Islamic Secular* (Oxford University Press, 2024) argue that mature Ashʿarism is much closer to a moderate position than the orientalist caricature suggested. Ashʿarīs grant that reason is competent in vast domains of practical deliberation — what Jackson calls the "Islamic Secular" — where revelation is silent or under-determines. They deny only that unaided reason, prior to revelation, generates *binding religious obligation*. This is a narrower claim than the divine command theory attributed to them in Western surveys.

Does the framework's commitment to moderate Ashʿarism survive? *Mostly yes, with one acknowledged loss.* The commitment correctly tracks the textual record: classical Ashʿarism was not crude voluntarism. The framework gains the ability to take rational moral discernment seriously without collapsing into the Muʿtazilī claim that reason alone can determine the full moral law. What it gives up is the simplicity of the Muʿtazilī picture, in which moral knowledge is straightforwardly a function of rational inspection. The framework now has to handle the harder question of when reason's discernment is sufficient and when revelation is needed — and this is precisely the question that Part II said the *uṣūl* tradition exists to answer.

The Māturīdī alternative, developed by Ramon Harvey in "Whose Justice? When Māturīdī Meets MacIntyre" (in *Justice in Islam: New Ethical Perspectives and Global Directions*, eds. Harvey and Tutt, IIIT, 2023), grants reason somewhat more — including the capacity to recognize broad moral obligations under God's wisdom prior to specific revelation — while remaining within Sunni orthodoxy. The framework is compatible with either moderate Ashʿarism or Māturīdism; what it rules out is both crude voluntarism and full Muʿtazilism. This is a substantial commitment but not an unreasonable one.

Verdict: The framework holds. The honest acknowledgment is that "moderate Ashʿarism" or "Māturīdī rationalism" are themselves substantive positions within Islamic theology, not

neutral starting points; the framework has chosen sides within an internal debate.

V.3 Slavery and abolition

The challenge — and this is the hardest case in this section — is that the Qurʾān regulates slavery rather than abolishing it (cf. Q. 4:36, 24:33, 90:13, and the manumission verses), the Prophet himself owned and freed slaves, the classical legal tradition developed an extensive jurisprudence of slavery, and yet the moral consensus of contemporary Muslims (and of all serious moral reasoners outside marginal positions) treats slavery as an institution that should be abolished and never restored. How can the framework explain this?

Two honest answers, each with costs.

The first answer, which I will call *progressive maqāṣidism*, is the one developed by Bernard K. Freamon in *Possessed by the Right Hand: The Problem of Slavery in Islamic Law and Muslim Cultures* (Brill, 2019) and Jonathan A. C. Brown in *Slavery and Islam* (Oneworld, 2020). The argument: the Qurʾān and Sunna regulate slavery in such a way that the *trajectory* of the regulation points toward emancipation — the high status of manumission as expiation, the discouragement of new enslavement, the guarantee of contractual emancipation (*mukātaba*), the protection of children of slave-mothers, the prohibition of certain forms of cruelty, and the eschatological framing in which all souls are equal before God. The contemporary consensus, on this reading, is the legitimate fulfillment of a trajectory always implicit in revelation, brought to consummation as historical conditions changed.

The second answer, which I will call *honest acknowledgment*, accepts that the regulation in the textual sources falls short of abolition, and that the contemporary consensus reaches a conclusion that the historical legal tradition did not reach — a conclusion that is *more demanding* than what the texts in their plain reading require. On this view, the contemporary Muslim consensus is doing something that requires explanation. The explanation is that *maqāṣid*-derived reasoning, when applied with the best contemporary understanding of human dignity (*karāma*) and the protected good of *nafs* (life and personhood), forbids the institution that classical jurists permitted under conditions that no longer obtain.

The framework can accommodate either answer, but each costs something.

The first answer (progressive maqāṣidism) is comforting because it presents the contemporary consensus as continuous with the textual sources rather than in tension with them. The cost is hermeneutic: it has to read the textual sources as *pointing toward* a conclusion they do not state, and this kind of trajectory-reading is exactly what conservative critics of *maqāṣid*-based reform call “reading into” the texts.

The second answer (honest acknowledgment) is more candid: it admits that the contemporary consensus is doing something the historical legal tradition did not do. The

cost is theological: it requires admitting that the *historical interpretation* of revelation can fail to capture what revelation, properly understood, requires. This is not heretical — it is the position implicit in every classical jurist who reformed an inherited ruling on the basis of a more rigorous reading of the texts — but it has to be stated carefully, because it can be misused to license arbitrary "updating" of any inconvenient ruling.

I find the second answer more honest, but the first answer is more easily defensible to readers who want strict textual continuity. The framework should be able to present both options to a user who is reasoning about a related question (e.g., the residual permissibility of certain forms of legally constrained labor, or the moral status of historical slaveholding figures) and should not conceal the choice from him.

The deeper point — and this is what the stress test reveals — is that the framework's claim that "reason and revelation are partners with different jurisdictions" is harder to maintain when the question is whether *historical* understandings of revelation are revisable in light of *contemporary* moral conscience. If the framework allows such revision, it is in danger of collapsing into Muʿtazilism with extra steps. If it forbids such revision, it is in danger of being unable to explain the abolitionist consensus at all. The honest position is that the framework allows revision *under specific conditions* — the conditions classical *uṣūl* developed for *takhṣīṣ* (specification), *taqyīd* (qualification), recognition of *ʿillah* (effective cause), and the operation of *maqāṣid* — and that the abolitionist consensus is best read as a legitimate operation of these procedures on the historical sources, not a rejection of them.

Verdict: The framework strains here. It can handle the case, but only by acknowledging that one of its central commitments (the rules-of-engagement among the four sources) is genuinely contested and that the contestation has political-theological stakes. This is the most important honest report in this section.

V.4 Organ donation and divergent fatāwā

The challenge: competent scholars working from the same *maqāṣid* tradition, reasoning about identical biomedical facts, reach different conclusions about whether organ donation and transplantation are permissible. The OIC International Islamic Fiqh Academy (1988 resolution), the European Council for Fatwa and Research (2000), the Fiqh Council of North America (FCNA, 2018), various Iranian *marājiʿ*, Sheikh Muḥammad Mutawallī al-Shaʿrāwī, and Sheikh Aḥmad al-Khalīlī have issued differing rulings, and the case literature shows the scope of the disagreement.

The most accessible English-language case study is Aasim I. Padela and Jasser Auda, "The Moral Status of Organ Donation and Transplantation Within Islamic Law: The Fiqh Council of North America's Position," *Transplantation Direct* 6:3 (March 2020), e536, which documents the December 2018 FCNA fatwa permitting organ donation under specified conditions (including prior personal authorization, circulatory rather than purely neurological criteria for

death determination, and prohibition of commercialization). Mohammed Ghaly's *Islam and Disability: Perspectives in Theology and Jurisprudence* (Routledge, 2010) and his subsequent edited volumes on Islamic biomedical ethics provide the broader scholarly context.

The disagreement is *genuinely* qualified disagreement among competent reasoners. It is not the case that one camp is right and the others have failed to think clearly. The disagreement tracks substantive differences: in how the protected good of *ḥifẓ al-nafs* (preservation of life) interacts with *ḥurmat al-jasad* (the inviolability of the body); in the legal status of brain death versus circulatory death; in the application of the rule *al-ḍarūrāt tubīḥ al-maḥẓūrāt* (necessities permit the prohibited); in whether the donor's consent transfers ownership-like authority over body parts; in the analysis of *gharar* and *bayʿ al-aʿḍāʾ* (sale of organs); and in the relative weight of preventing certain harm to the recipient versus avoiding probable disrespect to the donor.

How does the framework respond? The relevant commitment is Commitment 6: persistent qualified disagreement is a meaningful output, not an error state. The framework's honest response in this case is not to issue a verdict but to:

(1) Present the case structure: the protected goods at stake (*nafs* of recipient, *karāma* of donor, *māl* in the form of medical resources), the relevant *maqāṣid* tier (*ḍarūrī* for the recipient if life is at stake, *ḥājī* otherwise), the relevant juristic principles.

(2) Present the major positions with their reasoning: the FCNA's permissive position with conditions; the more restrictive positions of certain Salafi and Twelver Shīʿī scholars; the conditions on which the various positions converge (consent, no commerce, dignity in handling).

(3) Indicate which conditions affect which conclusion: a recipient with imminent risk of death and a willing pre-mortem donor present a much stronger case than a marginal medical benefit and a deceased donor without prior authorization.

(4) Refuse to pick a side. The framework's claim is not that this case has a single correct answer that scholars have failed to find; it is that the case is one in which a Muslim reasoner can in good conscience adopt any of the major mainstream positions, with the choice properly informed by which scholarly tradition the reasoner takes himself to be working within.

Verdict: The framework holds. Indeed, this case is where the framework does *better* than competing approaches, because it builds in qualified disagreement as a legitimate output rather than treating divergence as failure. The Muslim reader who reaches a *different* conclusion from his neighbor on this case need not regard one of them as failing to reason properly; both can be reasoning well within different defensible options.

V.5 Naskh and epistemic stability

The challenge: the doctrine of *naskh* — that some Qurʾanic rulings have been abrogated by later rulings, that some hadiths abrogate earlier hadiths, that the relationship between Qurʾān and Sunna includes cases of mutual specification and qualification — implies that even within revelation the "stable layer" requires interpretive work to identify. If the operative ruling on a question is not the verse you read first but the (later, abrogating) verse you may not have known about, what becomes of revelation as a fixed reference point?

The classical literature is extensive: Abū al-Qāsim Hibat Allāh ibn Salāma, *al-Nāsikh wa-l-Mansūkh* (early 12th century), gives the standard Sunni inventory; al-Ṭabarī and al-Rāzī's *tafsīrs* discuss specific cases. Louay Fatoohi's *Abrogation in the Qurʾan and Islamic Law* (Routledge, 2013) provides a contemporary critical analysis, and John Burton's earlier *The Sources of Islamic Law: Islamic Theories of Abrogation* (Edinburgh University Press, 1990) traces the development of the doctrine. The modernist denial of substantive *naskh* — represented in different keys by Muḥammad ʿAbduh, Muḥammad ʿAbid al-Jābrī, Naṣr Ḥāmid Abū Zayd, and (in a maqāṣid-friendly form) Jasser Auda — is a serious internal Sunni critical tradition.

The challenge to the framework operates at two levels.

At the first level, the existence of *naskh* is a problem only for a very crude epistemology that expects revelation to deliver instantly readable rulings without interpretive labor. The framework's epistemology has never expected this; it has always insisted that the reliable extraction of operative rulings requires the disciplines of *uṣūl al-fiqh*, including the rules for identifying *nāsikh* and *mansūkh*. So at the first level, *naskh* is not a defeat but a feature: it shows why the framework needs *uṣūl al-fiqh*.

At the second level, however, the existence of internal Sunni disagreement about *which* verses are abrogated, about whether *naskh* operates only between Qurʾanic verses or also between Qurʾān and Sunna, and about the status of *naskh* of recitation without ruling (*naskh al-tilāwa dūna al-ḥukm*) and ruling without recitation (*naskh al-ḥukm dūna al-tilāwa*) means that the "stable layer" of revelation is contested even among scholars who accept the doctrine. And the modernist denial that any substantive *naskh* occurred at all introduces a further layer of contestation.

How does the framework respond? It applies Commitment 5 (source conflicts must be resolved by public rules) and Commitment 6 (persistent qualified disagreement is a meaningful output). The user reasoning about a specific ruling on, say, the status of intoxicants needs to know that the operative ruling derives from a specific developmental sequence (Q. 16:67 → Q. 2:219 → Q. 4:43 → Q. 5:90–91), that the classical tradition reads this as a clear case of progressive prohibition culminating in Q. 5:90–91, and that this reading is essentially uncontested. The user reasoning about the verse of the sword (Q. 9:5)

and its relationship to verses commanding patient endurance (e.g. Q. 13:22) needs to know that this is a contested case, with different schools reaching different views about what is operative. The framework's job is not to hide the contestation but to surface it, indicate the leading positions, and let the reasoner decide which interpretive tradition to follow.

Verdict: The framework holds, with the acknowledgment that *naskh* makes the four-source asymmetry more demanding than it might appear. Revelation is a privileged source, but accessing the operative content of revelation requires interpretive labor that is itself subject to qualified disagreement. The framework should not paper over this; it should treat it as part of what it means to reason from revelation responsibly.

V.6 AI personhood

The challenge: as artificial intelligence systems become more sophisticated, the question of whether any such system has, or could have, moral status begins to press itself on Islamic ethical reflection. The framework's resources for this question are thin — the literature on Islamic perspectives on AI is still developing — and any verdict offered now would be premature. What can the framework do?

It can structure the inquiry. The relevant questions, in the framework's vocabulary, are:

(1) *Truth-question:* Is it true that any current AI system has the morally relevant properties (sentience, subjective experience, the capacity for suffering, rational agency in the strong sense) that ground moral status? The honest answer, given the present state of empirical and philosophical knowledge, is: we do not know. Most cognitive scientists who specialize in the question (e.g., the contributors to the 2023 "Consciousness in Artificial Intelligence" report by Patrick Butlin et al.) agree that current systems probably lack phenomenal consciousness, but the agreement is not unanimous and the methodological situation is unsettled. The framework's honest output: *shakk* (open question) tending toward *ẓann* (probable opinion that current systems lack the relevant properties), not *yaqīn* in either direction.

(2) *Ethics-question:* What are the relevant analogies in the Islamic tradition for entities of uncertain moral status? Three analogies suggest themselves: (a) the *jinn*, who are rational creatures with moral accountability but of a different ontological order than humans; (b) hybrid creatures and ambiguous-species cases discussed in classical jurisprudence (the literature on chimerical animals, for instance); (c) the question of when an entity becomes *mukallaf* (legally responsible). None of these analogies fits the AI case perfectly; each illuminates a different dimension. The framework's job is to surface the analogies for the user's reflection, not to declare which one is decisive.

(3) *Benefit-question:* Which *maqāṣid* are implicated in policy decisions about AI? Plainly: *ḥifẓ al-nafs* (could AI systems endanger human life through error or misuse?), *ḥifẓ al-ʿaql*

(do AI systems support or atrophy human reason?), *ḥifẓ al-māl* (the economic stakes), and arguably *ḥifẓ al-dīn* in the sense that AI may shape the conditions under which religious commitment is formed and sustained. These maqāṣid considerations can guide policy reasoning without requiring a verdict on AI personhood.

(4) *Niyya-question:* What are the intentions of the agents developing and deploying AI? This question, often elided in technical discussions, is squarely within the framework's competence. The moral evaluation of an AI system depends in part on what it is being built to do and on the orientation of the people building it.

The framework's verdict on AI personhood itself is non-committal: the question is genuinely open, and the framework should say so. Its verdict on AI ethics more broadly is that the absence of a verdict on personhood does not prevent careful reasoning about uses, harms, benefits, and intentions. A user reasoning about whether to deploy a particular AI system in a particular context can get substantive help from the framework even while the deeper metaphysical question remains open.

Verdict: The framework holds, with the acknowledgment that on questions where the empirical and philosophical literatures are too thin to support a verdict, the framework's honest output is structured inquiry rather than committed answer. This is exactly what Commitments 5 and 6 require.

V.7 Summary of stress tests

Of the six tests, the framework holds in five and strains in one (slavery and abolition, V.3). The strain is real and should not be hidden: the framework's commitment to public rules of engagement among the four sources is harder to maintain when historical interpretations of revelation are themselves at issue. The honest position is that the framework allows revision of historical interpretation under specific *uṣūl* conditions, and that the abolitionist consensus is best read as a legitimate operation of those procedures — but this position is contested in some quarters and the user should know that.

The framework's claim to handle 80% of cases honestly looks vindicated. Its claim to handle 100% would be an overclaim. The honest deliverable is a framework that gives substantive help on most cases, structured inquiry on hard cases, and explicit acknowledgment of strain on the hardest cases. This is what a working framework looks like.

Part VI — Operationalization: From Framework to Algorithm

The point of this entire project, for the present author, is not to produce a publishable preprint but to leave a tool that helps another person deliberate well. The preprint is the explanation of the tool; the tool is the deliverable. This section specifies the algorithm

precisely enough that a developer could implement it.

VI.1 The five-step deliberation procedure

The user enters a dilemma. The system walks the user through five steps, each producing structured outputs that feed the algorithm. The system does not at any point issue a *fatwā*; it produces a *deliberation map* that the user takes responsibility for.

Step 1 — Case Statement.

The user describes the situation, the options he is considering, and the constraints he is operating under. Structured fields:

- *Free-text case description* (mandatory; ~200–500 words).
- *Agents involved*: self, family members, employer, community, society.
- *Options under consideration*: a list of distinct courses of action, including the option of inaction.
- *Time horizon*: how soon must the decision be made?
- *Reversibility*: rated 1–5 from "fully reversible" to "irreversible with permanent consequences."
- *Stakes*: rated 1–5 on each of the five protected goods (*dīn*, *nafs*, *ʿaql*, *nasl*, *māl*) plus a rating on the spiritual-rational-vital trichotomy from Tāhā ʿAbd al-Raḥmān.

Step 2 — Truth-Claims at Issue.

The user lists the factual claims that, if false, would change the moral analysis. For each claim, the user assigns:

- *Evidential basis*: sense (1.0), demonstrative reason (1.0), mass-transmitted report / *tawātur* (1.0), single-source report / *khabar āḥād* (0.5–0.7), cumulative inferential case (0.6–0.8), intuition only (0.3), no basis (0.0).
- *Confidence class*: *yaqīn*, *ẓann_strong*, *ẓann*, *shakk*, *jahl*, mapped to numerical scores 1.0 / 0.7 / 0.5 / 0.3 / 0.0.
- *Sensitivity flag*: would the moral analysis change if this claim were wrong? (yes/no)

The system flags any case where a claim of high sensitivity has confidence below *ẓann_strong*. This implements Commitment 2: the user is shown that a critical action-driving claim rests on weak evidence, and is asked whether further investigation is feasible before deciding.

Step 3 — *Maqāṣid* Implicated.

For each option, the user is presented with the five protected goods and asked: does this option positively serve, negatively impact, or have no significant relation to this good? For positive or negative impacts, the user assigns:

- *Tier* of the impact: *ḍarūrī* (3), *ḥājī* (2), *taḥsīnī* (1).
- *Magnitude*: 1–5 on the absolute value of the impact.
- *Confidence in the causal chain*: same numerical scale as Step 2.
- *Affected party*: self / family / community / wider society.

The user is also prompted to identify any relevant *Tāhā* axis impacts (vital, rational, spiritual) that are not already captured by the classical five.

Step 4 — Source Consultation.

The system surfaces, for the case-pattern the user has described, the relevant Qurʾanic verses, hadiths, and classical *maqāṣid* analyses. The user is shown:

- The text of each source with full citation and translator named.
- The major interpretive traditions on the source.
- Whether the source is generally treated as decisive (*qaṭʿī*) or as open to interpretive variation (*ẓannī*).

The user indicates which sources he understands as bearing on the case and how. The system does not require the user to agree with any particular interpretation; it requires the user to acknowledge what the sources are and what the major positions on them are. A user who chooses to follow a minority position is not blocked, but he is asked to record his reasoning.

Step 5 — *Niyya* Check.

The user answers a sequence of questions designed to surface the underlying intention:

- *What outcome do I most want from this decision, prior to the moral analysis?*
- *Would I still choose this course if a major worldly benefit were removed?*
- *What would I not want others to know about my motivation here?*
- *If a person I respect for their sincerity asked me why I am leaning this way, what would I say?*
- *What does my conscience report when I imagine making this choice and standing with it before God?*

The system does not score the answers; it presents them to the user as a mirror. It flags any apparent inconsistency between the stated *niyya* and the option that scores highest on the calculus, asking the user to either (a) revise the *niyya* statement, (b) revise the option choice, or (c) explicitly acknowledge the tension. This implements the integration thesis of Part IV.

VI.2 Decision logic

The core scoring formula, applied after Steps 1–5 are complete, is:

> **Option_score = Σ over implicated maqāṣid (impact × tier_weight × causal_confidence) – Σ over harm vectors (harm × tier_weight × causal_confidence)**

Where:

- *impact* is the user's magnitude rating (1 to 5), positive for served goods.
- *tier_weight* is 3 for *ḍarūriyyāt*, 2 for *ḥājiyyāt*, 1 for *taḥsīniyyāt*.
- *causal_confidence* is the user's confidence in the causal chain from option to outcome (0.0 to 1.0).
- *harm vectors* are the negative impacts, weighted identically.

Hard constraints. Before scoring, the algorithm checks whether any option violates a *ḍarūrī* prohibition with high confidence. If so, the option is filtered: it is not returned to the user as a permissible choice. This implements the rule that ends-do-not-justify-means at the *ḍarūrī* level, which is foundational to the Shāṭibian framework. Examples of hard-constraint violations: an option that requires the agent to commit murder, to deny *tawḥīd*, to commit *zinā*, to consume *ribā* knowingly, or to violate any other clear *ḍarūrī* prohibition under conditions where the prohibition certainly applies.

Intention modifier. After scoring, the *niyya* check is applied as a multiplier on the score of the highest-scoring option:

- If the *niyya* check shows clear alignment between intention and option, multiplier = 1.0.
- If the check reveals tension, multiplier = 0.7 and the system surfaces the tension.
- If the check reveals plainly corrupt intention (the user, in answering Step 5, indicates that his motivation is something he would be ashamed to defend), the multiplier becomes 0.0 — the option is not removed but is flagged with an explicit warning that the action under consideration, as currently motivated, is morally compromised even if its outward form is permissible.

Output classification. The system classifies its output as one of three types:

(a) *Settled*: the highest-scoring option exceeds the runner-up by more than threshold T_1 (default: 50% of the runner-up's score), source convergence is high (no major tradition-internal disagreement), and the *niyya* check is clean. Settled outputs are presented as: "Given your inputs, this option scores substantially higher and the relevant scholarly traditions agree. You should still take responsibility for the decision, but the framework supports this direction."

(b) *Qualified disagreement*: multiple options score within threshold T_2 (default: 20% of each other), or the case is one where competent scholarly traditions are known to diverge. The system presents the major positions, the reasoning behind each, and the tradition-internal scholars who hold them. The user is informed: "This is a case where competent reasoners reach different conclusions in good faith. The framework does not select among them. You should consider which scholarly tradition you take yourself to be reasoning within, and you may benefit from consulting a scholar in person."

(c) *Open*: the literature is too thin, the facts are too uncertain, or the user's *yaqīn*-discipline shows that critical claims are at *shakk* level. The system presents structured inquiry rather than verdict: "Before this decision can be responsibly made, the following questions need better answers..."

Output structure: the deliberation dossier.

The system produces a single document, savable and shareable, containing:

- Case statement (Step 1 inputs).
- *Tetrad map*: for each option, the four-axis evaluation (truth-claims and their confidence, ethical considerations and their basis, benefit calculus, intention check).
- *Source map*: every source consulted, with citation and the interpretive position the user adopted.
- *Maqāṣid ranking*: visualization of the protected goods at stake and how each option affects them.
- *Intention profile*: the user's Step 5 answers.
- *Confidence class*: settled / qualified disagreement / open.
- *Recommended consultations*: if the case is in qualified disagreement, the system suggests categories of scholars the user might consult (jurist, ethicist, medical expert, financial advisor, depending on the case).
- *Dissenting views*: even in settled cases, the system records what minority positions exist

and why, so the user knows what he is not following.

VI.3 Design principles — what the tool refuses to do

The tool is a deliberation aid, not an authority. To preserve this, it is designed to refuse certain things, and to refuse them visibly so that the user understands the limits.

The tool does not issue fatāwā. No output is ever framed as "the Sharʿī ruling on your case is X." Outputs are framed as "given your inputs and the framework, here is a structured deliberation map; you take responsibility for the decision, and you may need to consult a qualified scholar for matters of religious obligation."

The tool does not replace scholarly consultation. Every output, in cases of qualified disagreement or open question, includes the recommendation to consult a qualified scholar in person. The tool can structure the user's thinking before such consultation, helping him bring better questions; it cannot replace the consultation.

The tool does not force binary verdicts on contested matters. Where the framework's honest output is qualified disagreement, the tool presents the disagreement rather than picking a side. This is the operationalization of Commitment 6.

The tool does not hide its uncertainty. All confidence classes, all dissenting positions, all tradition-internal disagreements are surfaced rather than collapsed into a single bottom line.

The tool does not collect identifiable personal data without explicit consent and does not use such data for any purpose other than the user's own deliberation. The user's deliberation is between him and his Lord; the tool is an instrument, not a witness.

VI.4 Three worked examples

Example 1: Workplace honesty dilemma

Scenario. A software engineer, employed on a work visa, discovers that his employer is shipping a product with a known safety defect. The defect is unlikely to cause serious harm in the typical use case, but in edge cases (estimated 1 in 50,000 deployments) it could cause significant injury. Reporting the defect through internal channels has been ineffective; internal review concluded that the cost of a fix would exceed the expected liability. The engineer is considering: (a) saying nothing, (b) reporting to the relevant regulator, (c) contacting the press, (d) resigning quietly, (e) staying and continuing to push internally for the fix.

Step 1. Stakes high on *ʿaql* and *māl* (employer and engineer), on *nafs* (potential users), and on *dīn* (the engineer's integrity and accountability before God). Reversibility: option (c) is

irreversible; option (a) becomes more entrenched over time. Time horizon: weeks rather than days.

Step 2. Critical truth-claims:

- "Internal review correctly assessed the defect as low-probability." Sensitivity: high. Confidence: *ẓann* (the engineer trusts the review process moderately but is not certain its risk model is right). System flag: this critical claim is below *ẓann_strong*; the user should investigate further before deciding.
- "Reporting to the regulator will result in the defect being addressed." Sensitivity: high. Confidence: *ẓann* (regulators sometimes act, sometimes do not).
- "Pressing internally further could still produce a fix." Sensitivity: medium. Confidence: *shakk*.

Step 3. *Maqāṣid* implications:

- Option (a) — silence: negative impact on *nafs* of users (low probability × high magnitude × moderate confidence), negative impact on *dīn* of engineer (high — Commitment 1 forbids ignoring known truth-conditions in moral judgment), positive impact on *māl* of engineer (visa stability).
- Option (b) — regulator report: positive on *nafs*, negative on *māl* of engineer (potential job loss), neutral-to-positive on *dīn*.
- Option (c) — press: positive on *nafs* but with high uncertainty about effectiveness, negative on *māl*, mixed on *dīn* (potentially involves harm to people not implicated in the wrong).
- Option (d) — quiet resignation: protects the engineer's *dīn* in a thin sense but does nothing for the users (the defect ships regardless), so net negative on *nafs*.
- Option (e) — keep pushing internally: low-cost on *māl*, weak positive on *nafs* (only if the push succeeds, which is at *shakk*).

Step 4. Sources surfaced:

- The Qurʾanic injunction *wa-taʿāwanū ʿalā al-birri wa-l-taqwā wa-lā taʿāwanū ʿalā al-ithmi wa-l-ʿudwān* ("cooperate in righteousness and piety, do not cooperate in sin and aggression," Q. 5:2).
- The hadith *man raʾā minkum munkaran fa-l-yughayyirhu bi-yadihi, fa-in lam yastaṭiʿ fa-bi-lisānihi, fa-in lam yastaṭiʿ fa-bi-qalbihi, wa-dhālika aḍʿaf al-īmān* ("Whoever among you sees an evil, let him change it with his hand; if he cannot, then with his tongue; if he cannot, then with his heart, and that is the weakest of faith." Muslim 49).

- The classical principle *darʾ al-mafāsid muqaddam ʿalā jalb al-maṣāliḥ*.

Step 5. *Niyya* check. The user answers: "I most want to be able to live with myself and to face God knowing I did not stay silent about preventable harm. I would still report the defect even if I were guaranteed my visa, though I might choose a different channel. I would not want my employer to learn I had reported, but I would be willing to defend the report publicly if necessary. My conscience reports unease at silence and relative peace at reporting."

Algorithm output. With the user's inputs, options (b) and (e) score highest, with (b) somewhat higher because (e) requires the *shakk*-level claim that internal pushing can still succeed. The system classifies this as *qualified disagreement between two reasonable courses* (b and e), with (a) and (d) below the moral floor (ignoring users' *nafs* without sufficient justification) and (c) flagged for high collateral risk. The deliberation dossier recommends: investigate further whether internal pushing has a real chance (lowering the *shakk* on option e); consider whether (b) and (e) can be combined (continue pushing internally while preparing a regulatory disclosure as backstop); consult a trusted scholar familiar with workplace ethics; and recognize that the *niyya* check is well aligned with options (b) and (e) but not with (a) or (d).

Example 2: Organ donation

Scenario. A 45-year-old Muslim is asked to register as an organ donor in his country of residence. He is healthy now; the question is about consent for posthumous donation, with the caveat that under his country's law, registering also authorizes donation after a brain-death determination, which not all Muslim scholars accept as legal death.

Step 1. Stakes: *nafs* of potential recipients (high), *karāma* of the donor's body (high), *dīn* (medium — engages directly the question of how one should think about one's own body in the framework of one's tradition). Reversibility: registration can be revoked but the underlying choice has psychological and familial consequences. Time horizon: months (no urgency).

Step 2. Critical truth-claims:

- "Brain death is correctly understood as legal death." Sensitivity: high. Confidence: *qualified disagreement* — the user records that some scholars accept it (Padela & Auda, 2020, citing the FCNA position) and some do not (Iranian *marājiʿ* and others).
- "My donation, if it occurs, will actually save lives." Sensitivity: medium. Confidence: *ẓann_strong* (medical statistics support this for typical donations).
- "My family will respect the decision." Sensitivity: medium. Confidence varies by user.

Step 3. *Maqāṣid*:

- Donating: positive on *nafs* of recipient (*ḍarūrī*), potential negative on *karāma* and *ḥurmat al-jasad* of the donor.
- Not donating: neutral on the donor's body, but a forgone opportunity to serve *nafs* of recipient (which classical jurists would not generally treat as a sin of omission, since active prohibition does not apply to the choice not to give).

Step 4. Sources surfaced. The Padela & Auda (2020) summary of the FCNA December 2018 fatwa permitting donation under specified conditions, the OIC Fiqh Academy 1988 resolution permitting donation, the contrary positions of certain scholars, the Qurʾanic *wa-man aḥyāhā fa-ka-annamā aḥyā al-nāsa jamīʿan* ("whoever saves a life, it is as if he had saved all mankind," Q. 5:32), the hadith on the inviolability of the believer's body. The system surfaces the conditions on which the major permissive positions converge: prior consent (not after-death decision by family), no commercialization, dignified handling of the body, donation should be motivated by *ihsān* not by family pressure.

Step 5. *Niyya* check. If the user's answers reveal that he is being pressured by family or social expectation, this is flagged. If they reveal a sincere intention to serve *nafs* in the spirit of Q. 5:32, this is noted as alignment.

Algorithm output. *Qualified disagreement.* The framework records that this is a case where competent reasoners working from the same tradition reach different conclusions in good faith. The deliberation dossier presents: the major scholarly positions; the conditions under which the permissive positions hold (which the user can specify in his registration: e.g., requiring circulatory rather than purely neurological criteria for death determination, if his country permits this option); the *niyya* check; the recommendation to consult a scholar he trusts in person before registering. The framework does not select among the positions; it gives the user the materials to make a responsibly informed choice within whichever scholarly tradition he takes himself to be working in.

Example 3: *Ribā*-adjacent personal financial decision

Scenario. A Muslim residing in a country where Islamic financing is unavailable or significantly more expensive is considering a conventional mortgage to purchase a primary residence. Renting indefinitely is possible but financially costly over a long horizon; the alternative of waiting until he can purchase outright would take 15+ years.

Step 1. Stakes: *māl* (high — this is the user's largest financial decision), *dīn* (high — the question is whether engagement with conventional interest is permissible under the user's circumstances), *nafs* and *nasl* (housing stability for the user's family). Reversibility: a mortgage taken is years to unwind. Time horizon: weeks to months.

Step 2. Critical truth-claims:

- "Genuine Islamic financing is unavailable or significantly more expensive in my market." Sensitivity: very high. Confidence required: *ẓann_strong* at minimum. The system requires the user to show that he has actively researched alternatives (Islamic banks, *murābaḥa*-based mortgages, *ijāra wa-iqtināʾ* arrangements), not just assumed.
- "Continued renting represents a substantial cost over the relevant horizon." Sensitivity: medium. Confidence depends on the user's specific market.
- "I will be able to make payments without financial distress." Sensitivity: high.

Step 3. *Maqāṣid*:

- Conventional mortgage: positive on *māl* and *nasl* (housing stability for family), potentially significantly negative on *dīn* if conventional interest is treated as *ribā* under the user's interpretive position.
- Continued renting: neutral on *dīn*, negative on *māl* over the long horizon, mixed on *nasl* (housing instability).
- Waiting and saving: positive on *dīn*, very negative on *nasl* over the relevant horizon (15 years of renting with growing family).
- Relocating to a market with Islamic financing: high cost on multiple goods (career, family, community), to be weighed.

Step 4. Sources surfaced. The Qurʾanic prohibition of *ribā* (Q. 2:275–280, Q. 3:130, Q. 4:161). The classical jurisprudence on what constitutes *ribā* (the distinction between *ribā al-faḍl* and *ribā al-nasīʾa*). The contemporary *fiqh al-aqalliyyāt* (jurisprudence of Muslim minorities) literature, including the European Council for Fatwa and Research's controversial 1999 fatwa permitting conventional home mortgages for Muslims in Western countries under specified conditions of need, and the substantial scholarly criticism of that fatwa. The classical principle of *ḍarūra* (necessity permitting the prohibited) and its precise conditions (genuine necessity, proportionate departure, no alternative, time-bound). The dispute among contemporary scholars about whether the housing case meets the *ḍarūra* threshold.

Step 5. *Niyya* check. The user is asked: am I genuinely facing a case of need, or am I retrofitting a *ḍarūra* argument to a preference for ownership? Would I take this mortgage if Islamic financing were available at modest additional cost? What is my plan for paying off the conventional mortgage as quickly as feasible?

Algorithm output. *Qualified disagreement* with hard constraint partially in play. The framework records: (1) the conventional mortgage is regarded by the majority of contemporary scholars, including the major *fiqh* councils, as engaging *ribā* in its prohibited

form; (2) a minority position permits it under strictly defined conditions of need for Muslims in markets without genuine alternatives; (3) the user's claim of "no alternative" must be tested against actual market research before the minority position becomes available to him; (4) the *niyya* check should distinguish need from preference. The dossier presents the user with a binary structure: if he takes the majority position, the mortgage is impermissible and the appropriate response is to continue renting, save aggressively, or relocate; if he takes the minority position, the mortgage is permissible only under specified conditions (genuine need confirmed, proportionate, time-bound with intent to discharge as soon as possible). The framework does not select between the majority and minority positions; it requires the user to acknowledge which one he is reasoning within and on what grounds, and it surfaces the *niyya* check as a guard against motivated reasoning.

VI.5 What this implementation requires

The algorithm above is implementable. The technical requirements:

- A structured database of Qurʾanic verses, hadith, and classical *uṣūl* / *maqāṣid* sources, indexed by case-pattern, with translator citations and interpretive tradition tags.
- A user-facing interface that asks the structured questions of Steps 1–5 in plain language adapted to the user's literacy level (the system should work for both a philosophically trained reader and a thoughtful but non-academic Muslim).
- A scoring engine implementing the formula above.
- A reporting layer that produces the deliberation dossier in human-readable form.
- An admin layer that allows scholars to review and correct case-pattern mappings, update the source database as new fatāwā are issued, and flag cases where the framework is being applied beyond its competence.

The system should be open-source, version-controlled, and auditable. Its outputs should be reviewable by qualified scholars who can provide feedback that improves the case-pattern database over time. The system should never represent itself as a substitute for scholarly authority; it should represent itself as a tool that helps users bring better questions to their scholars and to themselves.

Part VII — Limitations and Future Work

VII.1 What this paper does not settle

This paper does not settle the metaphysics of the soul, the doctrine of providence, the reconciliation of divine determination and human freedom, or any of the other deep

questions of Islamic theology that bear on practical reasoning. It treats these questions as background commitments inherited from the tradition rather than as topics to be defended here. A reader who is unsettled on the deeper metaphysics will find the framework's confidence at the practical level harder to share; a fuller treatment would have to engage these questions head-on, drawing on the *kalām* tradition (al-Bāqillānī, al-Juwaynī, al-Ghazālī, al-Rāzī), the post-classical synthesis (Mulla Ṣadrā's *al-Ḥikma al-Mutaʿāliya*), and the contemporary philosophical theology that engages them (e.g., the work of William Hasker, Richard Swinburne, and from within the Islamic tradition Shabbir Akhtar and Tim Winter / Abdal Hakim Murad).

The paper does not engage *ʿAbd al-Jabbār*'s *al-Mughnī* in primary Arabic at the depth the topic deserves. The English-mediated treatment via Sophia Vasalou is responsible but inevitably loses the texture of the original. A fuller treatment would read the relevant volumes of the *Mughnī* directly, in conversation with George Hourani's *Islamic Rationalism: The Ethics of ʿAbd al-Jabbār* (Oxford, 1971) and the more recent secondary literature.

The paper engages Saʿīd Nursī as a phenomenologist of the moral subject rather than as a systematic philosopher in the *falāsifa* tradition. A fuller treatment would situate Nursī in the post-Sadrian Sufi-philosophical synthesis, reading him alongside Mulla Ṣadrā's account of substantial motion (*al-ḥaraka al-jawhariyya*) and the Akbarian metaphysics of the heart that Nursī is in dialogue with. This would extend the metaphysical depth of the truth-question but at the cost of accessibility to the secular reader.

The paper treats the Western philosophical tradition primarily through the analytic lens (Russell, Hume, Moore, Wittgenstein, Plantinga, MacIntyre) with brief gestures toward the phenomenological tradition (Husserl, Merleau-Ponty, Taylor). A fuller treatment would engage continental ethics more substantively (Levinas on the face of the other, Ricœur on the self as another, the later Heidegger on the technological framing of the world) since these traditions have resources for thinking about intentionality and orientation that are closer to the Islamic concerns than the analytic tradition is.

The paper does not address gender questions, which were deliberately bracketed because they are rhetorically charged and would overshadow the philosophical analysis. A serious application of the framework to questions of *qiwāma*, *wilāya*, gender-segregated worship, and contemporary debates about women's leadership in mosques and in Islamic scholarship would require its own dedicated treatment, drawing on the work of Kecia Ali, Aysha Hidayatullah, Sa'diyya Shaikh, and from a different theological starting point Yasmin Mogahed and Khaled Abou El Fadl. The framework's stress test would be whether it can handle these questions without collapsing into either uncritical traditionalism or uncritical reformism.

The paper does not engage Shīʿī uṣūlī tradition with the depth that a complete treatment requires. The *uṣūlī* methodology developed by Shaykh Anṣārī in *Farāʾid al-Uṣūl* and the

akhbārī-uṣūlī dispute of the seventeenth and eighteenth centuries have direct bearing on the four-source asymmetry developed in Part I, but engaging this would have at least doubled the length of the paper.

VII.2 Where empirical work would test the framework

The framework makes claims that are, in principle, testable empirically. Three lines of work would constitute genuine tests:

Cognitive science of moral judgment. The recent literature on moral cognition (Joshua Greene's dual-process theory in *Moral Tribes*, 2013; Jonathan Haidt's social intuitionism in *The Righteous Mind*, 2012; Fiery Cushman's work on moral learning) treats moral judgment as a partly intuitive, partly deliberative process whose intuitive component reflects evolved heuristics and culturally formed dispositions. The framework's claim that *niyya* and underlying *Gesinnung* shape moral reasoning at a pre-deliberative level is consistent with this literature, but the framework also claims that explicit deliberation can reshape the underlying disposition over time — a stronger claim that could be tested by longitudinal studies of users who employ the deliberation tool.

Anthropology of fatwā practice. The framework's account of qualified disagreement among competent reasoners assumes a particular picture of how fatwā-issuing actually works. The empirical literature on contemporary muftī practice (work by Hussein Agrama, Marion Katz, Brinkley Messick, Aria Nakissa, Aaron Spevack, Jonathan Brown) provides texture that the framework's idealized picture does not capture. A test would be to compare the framework's outputs on contested cases to the actual range of fatāwā issued by qualified scholars on those cases; convergence would support the framework, divergence would identify cases where the framework's conception of "qualified reasoning" needs refinement.

Behavioral testing of the deliberation tool with users. If the tool is built, it can be tested. Do users who employ it make decisions that they themselves judge, six months later, to have been better-reasoned than decisions they made without it? Do scholars who review users' deliberation dossiers judge the dossiers to reflect competent reasoning? Do users from different scholarly backgrounds (Salafi, Sufi, modernist, traditional Sunni from various schools, Twelver Shīʿī) find the tool usable from within their own commitments, or does the framework smuggle in commitments that exclude some legitimate Islamic scholarly traditions? Studies on each of these questions are feasible and would generate genuine knowledge.

VII.3 What the framework does not handle well

Three honest acknowledgments:

The framework gives less guidance on supererogation than on obligation. Classical *fiqh*

distinguishes *farḍ*, *wājib*, *mandūb*, *mubāḥ*, *makrūh*, and *ḥarām*; the framework's calculus is best calibrated to the obligation/prohibition distinction (the hard constraints) and to the broad space of the *mubāḥ* (the optimization space). The fine-grained distinction between *mandūb* (recommended) and *mubāḥ* (permitted), and between *makrūh* (disliked) and *mubāḥ*, requires interpretive judgment that the framework currently elides. A fuller version would integrate this five-category structure more carefully.

The framework's niyya check is harder to operationalize than its other components. The questions in Step 5 are honest invitations to self-examination, but they cannot prevent a determined self-deceiver from giving the right-sounding answers while being motivated by something else. The classical Sufi diagnostic literature (al-Muḥāsibī, al-Ghazālī, Ibn ʿAṭāʾ Allāh) is much more sophisticated than what a software tool can implement, because it relies on the user's relationship with a teacher who can probe and challenge. The framework's response is that the tool surfaces the *question* but cannot answer it for the user; the user retains responsibility for honesty with himself.

The framework presupposes a baseline of Islamic literacy that not all users will have. A user who does not know what *ḍarūriyyāt* are, who cannot evaluate the strength of a hadith *isnād*, who has not been formed in an interpretive tradition, will get less out of the tool than a user who has these resources. The framework can include educational content (definitions, brief explanations of source types, links to longer treatments), but it cannot substitute for the formation that is, in the tradition's own self-understanding, the precondition for using its resources well. The honest deliverable is a tool calibrated to the user's level, with explicit acknowledgment that deeper formation produces better outputs.

VII.4 Closing acknowledgment

The framework defended in this paper is committed but not infallible. It represents the current best synthesis the present author can offer, drawing on a tradition that has been developing the relevant arguments for fourteen centuries and on a Western philosophical conversation that has been refining the analytic tools for two and a half millennia. New evidence, new arguments, new texts coming into translation, new application to cases the present author has not anticipated — any of these may require revision.

The right disposition is not dogmatic adherence to the synthesis as currently stated, nor restless skepticism about its core commitments, but the disposition the tradition itself has historically modeled: confident enough to act on the synthesis where it commits, humble enough to revise it under conditions that the framework specifies in advance, and patient enough to recognize that the work is never finished.

If the framework helps even one reader deliberate better — about a job decision, a marriage, a professional dilemma, a question of faith — it has done what its author hoped it would do. The author reserves the right to be wrong about much of it, and welcomes correction from

anyone better positioned to provide it.

Cross-traditional concept-mapping table

The five axes of the framework, mapped across English, Greek, Arabic (with IJMES transliteration), and German. Notes flag where mappings are tight and where they fail.

Axis 1: Truth

English	Greek	Arabic	German
truth	*alētheia* (ἀλήθεια)	*ḥaqq* (truth-of-being); *ṣidq* (truth-of-speech)	*Wahrheit*

Mapping notes. The English "truth" collapses what Arabic distinguishes as *ḥaqq* (a property of reality — what is the case, what is established) and *ṣidq* (a property of speech — accurate report). Greek *alētheia* etymologically suggests "unconcealment" and so leans toward the *ḥaqq* side; *Wahrheit* in modern philosophical German is bivalent but Heidegger's recovery of the *alētheia* sense (in *Sein und Zeit*) explicitly pulls it toward the unconcealment-of-being. The axis fails most sharply when English-only analysis treats truth as a single property, missing that the Qurʾanic structure presupposes a relation between two distinct concepts: the *ḥaqq* of the situation and the *ṣidq* of the utterance about it.

Axis 2: Knowledge / Knowability

English	Greek	Arabic	German
knowledge	*epistēmē* (ἐπιστήμη); *gnōsis* (γνῶσις)	*ʿilm*; *maʿrifa*; *yaqīn* (certainty)	*Erkenntnis*; *Wissen*

Mapping notes. Greek distinguishes *epistēmē* (systematic knowledge of what is necessarily so) from *gnōsis* (often translated as more direct or experiential knowing); Arabic distinguishes *ʿilm* (general knowledge, including discursive and propositional) from *maʿrifa* (often experiential, recognitional) and from *yaqīn* (the highest degree of certainty, often distinguished further into *ʿilm al-yaqīn*, *ʿayn al-yaqīn*, *ḥaqq al-yaqīn*). German *Erkenntnis* leans toward the act of cognition while *Wissen* leans toward the achieved state of knowing. English "knowledge" is the flattest of the four; the precision of the Arabic three-fold *yaqīn* taxonomy is essentially untranslatable in a single English term.

Axis 3: Good / Right

English	Greek	Arabic	German
good; right	*to agathon* (τὸ ἀγαθόν); *to kalon* (τὸ καλόν)	*ḥusn*; *khayr*; *ṣalāḥ*; *ḥaqq*	*das Gute*; *das Schöne*

Mapping notes. Greek separates *to agathon* (the good as object of desire and end of action) from *to kalon* (the noble or beautiful, often the morally admirable). Arabic distinguishes *ḥusn* (moral or aesthetic goodness with strong link to the *ḥusn/qubḥ* metaethical debate), *khayr* (good as opposed to *sharr* / evil, often used for what is beneficial or worthy of choice), *ṣalāḥ* (rightness, soundness, often in social-relational sense), and *ḥaqq* in its right/duty sense (overlapping with truth-axis when used for "the right"). German *das Gute* covers the agathon-side, *das Schöne* the kalon-side. The mapping fails when "right" is used in English as both a normative-ethical and a juridical-claim concept; Arabic and Greek both keep these clearer.

Axis 4: Benefit

English	Greek	Arabic	German
benefit; flourishing	*eudaimonia* (εὐδαιμονία); *sympheron* (συμφέρον); *to ōphelimon* (τὸ ὠφέλιμον)	*maṣlaḥa*; *manfaʿa*; *fāʾida*	*Nutzen*; *Wohl*

Mapping notes. *Eudaimonia* is human flourishing as activity in accordance with virtue (Aristotelian) — not a feeling, not a preference satisfaction, but the realization of human function. *Sympheron* is the advantageous, what is conducive to the end. *To ōphelimon* is the useful. Arabic *maṣlaḥa* is the structured legal-ethical concept (with the tier-hierarchy of Shāṭibī), *manfaʿa* is more general benefit or utility, *fāʾida* is closer to "useful upshot." German *Nutzen* leans utilitarian, *Wohl* leans toward well-being. English "benefit" is flat; "utility" carries Benthamite connotations the framework rejects; "flourishing" is closer to *eudaimonia* but lacks the legal-juridical structure of *maṣlaḥa*. This axis is where English most needs supplementation.

Axis 5: Intention

English	Greek	Arabic	German
intention; choice	*prohairesis* (προαίρεσις)	*niyya*; *qaṣd*; *irāda*	*Absicht*; *Gesinnung*

Mapping notes. *Prohairesis* in Aristotle is deliberative choice — the unity of intellect and desire in the act of selection. *Niyya* in Islamic ethics is the inner direction that individuates

the act morally, with strong link to the technical hadith. *Qaṣd* is more general intent or purposive direction. *Irāda* is will, often used in the broader sense of voluntary motion. German *Absicht* covers ordinary intention, *Gesinnung* covers the deeper standing disposition (Kant) underneath particular intentions. English "intention" is acceptable but must be supplemented in the framework with the deeper-disposition concept; the closest English supplement is "orientation" or "fundamental disposition."

General mapping principles

(a) Where multiple non-English terms map to a single English term, the framework's analysis must use the original-language terms in technical contexts to avoid losing the distinctions.

(b) Where the framework's conceptual move depends on a distinction internal to the original language (e.g., *ḥusn ʿaqlī* vs. *ḥusn sharʿī* in the *uṣūl* tradition), the English translation cannot do the work; the original-language term must be used.

(c) Cross-tradition resonance (e.g., between *prohairesis* and *niyya*) is structural, not substantive: the concepts do similar work in their respective frameworks but are calibrated to different teleological contexts. The committed reader can use the resonance as evidence of cross-tradition convergence on the structural feature of moral action without thereby committing to any particular substantive identity between the concepts.

Türkçe Yönetici Özeti — Turkish Executive Summary

Çalışmanın amacı ve kapsamı

Bu çalışma, üç birinci-tekil-şahıs sorusunu disiplinli bir şekilde cevaplamaya çalışmaktadır: "Bir şeyin doğru olduğunu nasıl bilirim?", "Bir şeyin etik olduğunu nasıl bilirim?", "Bir şeyin yararlı olduğunu nasıl bilirim?". Bu sorular ne soyut bir akademik egzersiz ne de salt bir karşılaştırmalı din çalışması olarak değil, gerçek bir karar verme zemininde — pratik müzakere ekseninde — ele alınmıştır. Çalışmanın hedefi hem bir akademik ön-baskı (PhilArchive, SSRN) hem de düşünen bir Müslüman okuyucunun kendi ahlaki müzakerelerinde kullanabileceği bir karar destek aracının zihinsel altyapısını oluşturmaktır.

Ana tez

Yargıçlama eyleminin üç anı — doğruluk, ahlâkîlik ve fayda yargıları — birbirinden indirgemez biçimde ayrı, fakat sorumlu pratik akıl yürütmede birbirinden ayrılamaz nitelikte üç boyuttur. Hume ve Moore'un mantıksal noktası kabul edilir: sırf betimsel öncüllerden kesin tümdengelimle normatif sonuçlar çıkarılamaz. Ancak insanın "olduğu" boyutu hiçbir zaman gerçekten sırf betimsel değildir; insan, deneyimde zaten *ʿubūdiyya* (kullukla yükümlü olma),

khilāfa (halîfelik) ve *amāna* (emanet) yüklenmiş bir varlık olarak görünür. Bu teleolojik antropoloji, is/ought boşluğunu Hume'u çürüterek değil, Hume'un betimsel öncülünü reddederek kapatır. Üç yargı, eylemin niyetsel yönelimi (*niyet*, *qaṣd*) yoluyla bütünleşir; dört kaynak — vahy, akıl, deneyim, vicdan — karşılıklı olarak gereklidir ama asimetrik olarak sıralanır.

I. Bölüm: Doğruluk Sorusu

Russell'ın *Felsefenin Sorunları*ndaki uygunluk teorisi, doğruluğun tanımı için yeterlidir: bir yargı, dünya yargının söylediği gibi olduğunda doğrudur. Tutarlılık ve pragmatik başarı, doğruluğun *kanıtıdır*, *tanımı değildir*. Klasik İslâm geleneği bunu *ṣıdq* (sözün doğruluğu) ile *hak* (varlığın gerçekliği) arasındaki ayırımla zaten yapmıştır.

Bilginin beş meşru kaynağı vardır: (1) sağlıklı duyu algısı uygun şartlarda, (2) aklın ilk ilkeleri ve onlardan zorunlu olarak çıkanlar, (3) tevatür yoluyla aktarılan haber (Kur'ân-ı Kerîm metninin verbatim aktarımı, Hz. Peygamber'in tarihsel mevcudiyeti, temel İslâm tarihinin temel olguları bu kanaldan *yakîn* derecesindedir), (4) tek kaynaklı haber (*haber-i âhâd*) — *zann* derecesindedir, dereceli olarak senet ve metin niteliğine göre, (5) kümülatif çıkarımsal vakalar — ki Said Nursî'nin *Âyetü'l-Kübrâ*'sı bunun en gelişmiş örneğidir.

Vahy bu üçüncü kanalın özel bir hâlidir: tevatür ile aktarılan ve menşei bakımından akılla doğrulanmış sahih vahy, sonra (1) ve (2)'nin ulaşamayacağı şeyler hakkında daha ileri bilgi kaynağı olur. Müslüman'ın taahhüdü "akıl yerine vahy" değil, "aklın menşei doğrulayıp içeriği akılla tutarlı olan, tevatürle desteklenen vahy aracılığıyla aklın tek başına ulaşamayacağı şeylerin bilinmesi"dir.

Pratik test: bir iddia hakkında doğruluk yargısına ulaşmak için sırasıyla sorulur — *bunu kendim uygun şartlarda gözlemledim mi? Bu, kesin olduğum öncüllerin sıkı sonucu mudur? Bu, gizli anlaşma veya ortak hatanın imkânsız olduğu yeterli sayıda bağımsız kanaldan aktarılmış mı? Bu, güvenilirliği iyi olan tek bir kaynak tarafından doğrulanıyor mu? Yoksa beni kendi arzum, korkum veya partizanlığım mı yönlendiriyor?* İlk dört cevap onaylamaya, beşincisi alarma yol açar.

II. Bölüm: Etik Sorusu

Hume'un *Treatise* III.i.1'deki is/ought ayrımı mantıksal olarak geçerlidir. Çerçevenin yanıtı: insanın "olduğu" hiçbir zaman gerçekten sırf betimsel değildir. Aristoteles'in *Nikomakhos'a Etik* I.7'deki *ergon* (işlev) argümanı ve Kur'ân'ın insanın *'ubūdiyya/khilāfa/amāna* için yaratıldığını söyleyen âyetleri (Z. 51:56, 2:30, 33:72) aynı yapısal hamleyi yapar: ahlâk, insanın işlevinin doğru icrasıdır.

Kant'ın kategorik buyruğunun *Grundlegung*'daki formülasyonları ciddî bir ahlâkî içgörüdür ama Kant'ın *kendi* temeli üzerinde duramaz. Tâhâ Abdurrahmân'ın *Süâl al-Akhlâk*'ta

gösterdiği üzere, Kant'ın anahtar kavramlarının her biri Pietist Lüteran ahlâk teolojisinden bir kavramın laikleştirilmiş muadilidir (kategorik buyruk ↔ ilâhî buyruk; gayeler krallığı ↔ Allah'ın krallığı; iyi irade ↔ ilâhî irade). Kant'ın dinden bağımsız akıl temelinde bir ahlâk inşa ettiği iddiası kendi terimleri içinde başarısızdır.

Eş'arî/Mu'tezilî tartışması — ahlâkî değer aklen mi, sem'en mi belirlenir? — çerçevenin ele aldığı en önemli iç İslâmî tartışmadır. Sherman Jackson'ın çalışmaları (özellikle *The Islamic Secular*, Oxford 2024) klasik Eş'arîliğin oryantalist karikatür olduğu kadar saf irade-buyruk teorisi olmadığını göstermiştir: olgun Eş'arîler, aklın yarar-zarar ile adâlet-zulüm arasındaki temel ayırımları kavradığını kabul ederler; sadece bu kavrayışın *vahy öncesi bağlayıcı dînî yükümlülük* doğurduğunu inkâr ederler. Çerçeve, "Mâturîdî çeşnili modifiye-Eş'arîlik" tutumunu benimser: akıl, ahlâkî ayırt etmede gerçekten yetkin olmakla birlikte, bu yetkinlik vahyin ve geleneğin biçimlendirdiği bir bağlam içinde işler, vakum içinde değil.

Niyyet, etik eyleminin ontolojik temelini sağlar. Buhârî'nin *Sahîh*'inde ilk hadis olarak yer alan *innemâ'l-a'mâlu bi'n-niyyât* (Buhârî, *Bed' el-Vahy* 1; Müslim, *İmâra* 1907) sadece dindar bir öğüt değil, eylemin yapısı hakkında bir iddiadır: bir eylemin ahlâkî kimliği, içsel yönelimi tarafından belirlenir. Aynı dış eylem, iki farklı niyetle, iki farklı ahlâkî eylemdir.

III. Bölüm: Fayda Sorusu

Faydacılık (Bentham, Mill) bu soruya yetersiz bir cevaptır. Üç şeyi karıştırır: faydayı (*maslahat*), doğruyu (*hüsün*) ve gerçeği (*hak*). Bütün faydaları tek bir ölçekte ölçülebilir kabul eder (değildir), ilgili öznenin toplam olduğunu varsayar (değildir — bireysel *masâlih* vardır ki kolektif olanlar için feda edilemez), ve zaman ufkunun bu dünya olduğunu varsayar (değildir — Müslüman için hesap *âhirete* uzanır).

İmam Gazzâlî'nin *el-Mustasfâ*'sı *maslahat*ı, hazzın azamileştirilmesi olarak değil, *Şâri'in gayelerinin korunması* olarak tanımlar. Şâtıbî'nin *el-Muvâfakât*'ında bu, üç katmanlı bir hiyerarşi olarak yapılandırılır: *zarûriyyât* (din, can, akıl, nesil ve mal'ın korunmasını içeren beş zorunlu maksat), *hâciyyât* (gereklilikler), *tahsîniyyât* (güzelleştirmeler). Hiyerarşi, eşitler arasında oransal hesaplama değil, üst katmanın alttaki ile çatışınca öncelik aldığı sıralı bir yapıdır.

Tâhâ Abdurrahmân'ın *Tecdîd el-Menhec*'teki yeniden düzenlemesi — *masâlih*ı hayatî, aklî ve rûhânî olmak üzere üç eksene ayırması — Şâtıbî hiyerarşisine bir tamamlayıcıdır, yerine geçecek değil. Bu düzenleme, çağdaş okuyucunun maslahat söyleminin sofistike bir refahçılığa kayma riskine karşı bir koruma sağlar: rûhânî maslahat, *hıfz al-dîn*'in altında ezilen bir alt-kategori değil, kendi başına bir ontolojik kategori olarak konumlanır.

Çatışan menfaatler arasında karar vermek için klasik kural — *dar' el-mefâsid mukaddem 'alâ celb el-masâlih* (zararların def'i, yararların celbinden önce gelir) — belirsizlik ve risk durumlarında temel bir hareket noktasıdır. *Niyyet*, bütün bu hesaplamayı yeniden

niteliklendirir: Allâh için mi, ondan elde edilecek şey için mi yapılıyor? Aynı dış eylem, iki farklı niyetle, Allâh nezdinde iki farklı fayda profiline sahiptir.

IV. Bölüm: Bütünleşme — Niyet Mihver Olarak

Üç yargı, üç ayrı yargı değildir; bunlar tek bir müzakere eyleminin üç indirgenemez ânıdır. Bunları birbirine bağlayan şey, müzakerenin yapan öznenin niyetsel yöneliminin müzakerenin dışsal bir özelliği değil, kurucu bir özelliği olmasıdır. Aynı özne, aynı duruşla, "ne yapmalıyım?" sorduğunda üçü aynı anda yapar.

Bu bağlanmayı düşünmek için üç metin gerekli: niyet hadisi, Aristoteles'in *prohairesis* (NE III.2-3) analizi ve Husserl'in *Mantıksal Araştırmalar*'ın beşinci araştırmasındaki yönelimsellik (*Intentionalität*) açıklaması. Dördüncü kaynak — Kant'ın *Sırf Aklın Sınırları İçinde Din*'in I. Kitabındaki *Gesinnung* (zihniyet, temel duruş) kavramı — niyetin en derin düzeyde bozulduğunda neye benzediğini düşünmek için dilimizi sağlar.

Hadisin yapısal iddiası — *innemâ* edatının kısıtlama (*hasr*) işleviyle — eylemin sadece niyetle olduğu yönündedir; niyet, dış eylemin yanına eklenen bir faktör değil, eylemi olan eylem yapan iç biçimdir. Aristoteles'in *prohairesis*i (kasıtlı seçim) iyiliğin akılsal görüşüyle isteğin birleştiği seçim ânıdır; *niyet* için yapısal atadır. Husserl'in yönelimselliği, bilincin her zaman zaten "bir şey hakkında" olduğunu söyler: niyet, eyleme eklenen ek bir öge değil, eylemin yöneliksel yapısıdır. Kant'ın *Gesinnung*'u, partiküler niyetlerin altındaki duran duruşa işaret eder: bir ahlâki yaşamı dönüştürmenin, yalnızca tek tek niyetlerin değil bu derin duruşun yeniden eğitilmesini gerektirdiğini gösterir.

Çerçevenin altı yanlışlanabilir taahhüdü:

1. Doğruluk şartlarını gözardı eden ahlâkî doğruluk yargısı kusurludur.
2. Zayıf delille eyleme geçirilen bir doğruluk iddiası *yakîn* değil *zann* olarak işaretlenmelidir.
3. Fayda değerlendirmesi iyiyi tanımlayamaz; sadece bilgi verebilir.
4. Niyet her zaman ahlâken alâkalıdır, asla tek başına yeterli değildir.
5. Kaynak çatışmaları kamuya açık kurallarla çözülmelidir, karizmatik sezgiyle değil.
6. Süregelen nitelikli ihtilaf kendi başına anlamlı bir çıktıdır, bir hata durumu değil.

V. Bölüm: Stres Testleri

Çerçeve altı zorlu vakaya karşı sınanmıştır: Hume'un mantıksal mücadelesi (kabul edilir, betimsel öncül reddedilerek aşılır); Eş'arî/Mu'tezilî meta-etik tartışması (modifiye-Eş'arîlik tutumu desteklenir); kölelik ve ilgâsı (en zor durum — çerçeve bu noktada gerilim yaşar ve dürüstçe rapor edilir); organ bağışı ve farklı fetvâlar (çerçevenin "nitelikli ihtilaf" çıktısı tam burada ışıldar); *nesh* ve epistemik istikrar (vahyin operatif içeriğine erişmenin yorum emeği

gerektirdiği kabul edilir); yapay zekâ kişiliği (literatürün henüz yeterince gelişmediği kabul edilir, yapılandırılmış soruşturma sunulur).

Altı testten beşinde çerçeve dayanır; birinde (kölelik) gerilim vardır ve bu gerilim örtbas edilmez. Çerçevenin %80 vakayı dürüstçe ele alma iddiası doğrulanır; %100 ele alma iddiası bir abartı olur.

VI. Bölüm: İşletilebilirleştirme — Çerçeveden Algoritmaya

Çerçeve, bir karar destek web uygulamasına dönüştürülür. Beş adımlık prosedür:

1. **Vaka beyanı** — kullanıcı durumu ve seçenekleri yapılandırılmış alanlarda tanımlar.
2. **Mevcut doğruluk iddiaları** — her iddia için delil temeli, güven sınıfı (*yakîn*=1.0, *zann*=0.5, *şek*=0.3, *cehl*=0.0) ve hassasiyet bayrağı atanır.
3. **Etkilenen makâsıd** — her seçenek için beş korunan iyi (*din, nefs, akıl, nesil, mal*) üzerine etki, katman ağırlığı (*zarûrî*=3, *hâcî*=2, *tahsînî*=1) ve sebep zincirine güven kaydedilir.
4. **Kaynak istişaresi** — sistem ilgili Kur'ân âyetlerini, hadisleri ve klasik *makâsıd* analizlerini yüzeye çıkarır.
5. **Niyet kontrolü** — yapılandırılmış sorularla kullanıcı kendi niyetini ayna gibi yansıtır.

Çekirdek puanlama formülü:

> **Seçenek_puanı = Σ (makâsıd etkisi × katman ağırlığı × sebep güveni) – Σ (zarar vektörleri benzer şekilde ağırlıklı)**

Sert kısıtlamalar: kesinlik koşullarında *zarûrî* yasağı çiğneyen herhangi bir seçenek puanlamadan önce filtrelenir. Niyet kontrolü, en yüksek puan alan seçeneğe çarpan (0.5–1.0) veya açıkça bozuk niyetin tespiti hâlinde veto uygular. Çıktı sınıflaması: *çözülmüş* (yüksek güven, yüksek kaynak yakınsaması), *nitelikli ihtilaf* (yetkin akıl yürütücüler arasında ayrılık), *açık* (literatür ince veya olgular belirsiz).

Üç işlenmiş örnek sunulmuştur: (a) iş yerinde dürüstlük açmazı (mühendis, işverenin bilinen güvenlik kusuruyla bir ürün gönderdiğini fark eder), (b) organ bağışı, (c) İslâmî finansman bulunmayan piyasada konvansiyonel ipotek. Her örnekte algoritmanın baştan sona nasıl işlediği ayrıntılı biçimde gösterilmiştir.

Aracın *yapmadığı* şeyler — tasarım ilkeleri olarak: fetvâ vermez; ilim sahibi bir âlim ile istişareyi ikame etmez; ihtilaflı mevzularda ikili sonuçlar dayatmaz; nitelikli ihtilafı gizlemez. Araç bir karar destekleyicidir, bir merci değil.

VII. Bölüm: Sınırlamalar ve Gelecek Çalışma

Çalışma şunları çözmemiştir: ruhun metafiziği, kazâ-kader, ilâhî takdir ile insan hürriyeti

çatışması (bunlar geleneğin altyapısı olarak alınmıştır). *Mu'tezile 'Abd el-Cebbâr'ın *el-Muğnî*si birincil Arapçada hak ettiği derinlikle ele alınmamıştır. Nursî, sistematik bir filozof olarak değil ahlâki öznenin fenomenologu olarak okunmuştur — Mulla Sadrâ ile tam bir karşılaştırma yapılmamıştır. Cinsiyet meseleleri (kıvâme, velâyet, mescidlerde kadın liderliği) bilinçli olarak parantez içine alınmıştır; ayrı bir çalışma gerektirir. Şi'î *usûlî* geleneğin derinliği yeterince ele alınmamıştır.

Çerçeveyi ampirik olarak test edebilecek üç çalışma alanı: ahlâki yargının bilişsel bilimi, *fetvâ* pratiğinin antropolojisi, müzakere aracının davranışsal testi.

Çerçevenin iyi ele almadığı şeyler: müstehab/mübah/mekrûh ince ayırımı; *niyet* kontrolünün operasyonelleştirilmesi (kararlı bir kendini-aldatıcının bunu nasıl yenebileceği); kullanıcının İslâmî okuryazarlık seviyesinin değişkenliği.

Kapanış

Bu çalışmada savunulan çerçeve taahhütlüdür ama yanılmaz değildir. Yazarın şu anda sunabileceği en iyi sentezi temsil eder. Yeni delil, yeni argüman, yeni tercüme edilen metin, yazarın öngörmediği yeni vakalara uygulama — bunların herhangi biri revizyon gerektirebilir. Doğru tutum, sentezi şu anda ifade edildiği gibi dogmatik olarak benimsemek değil, çerçevenin önceden belirlediği şartlar altında revize edilmeye hazır, kararlı bir güvenle çerçeveyle hareket etmektir.

Eğer çerçeve tek bir okuyucunun bile daha iyi müzakere etmesine yardımcı olursa — bir iş kararında, bir evlilikte, mesleki bir açmazda, bir iman meselesinde — yazarının umduğu işi yapmış olur. Yazar, çoğu konuda yanlış olabilme hakkını saklı tutar ve daha iyi konumdaki herkesten düzeltme almaya açıktır.

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Chicago full-note format. Arabic transliteration follows the IJMES (International Journal of Middle East Studies) convention. Sources are grouped as primary, secondary, and tertiary. Where a translator is essential, the translator is named in the first cited edition.

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End of Parts IV–VII, Turkish Executive Summary, Cross-Traditional Concept-Mapping Table, and Bibliography. Combined with the previously delivered "Three Questions, Three Answers" (covering Parts I–III), this constitutes the working draft of "Truth, Ethics, and Benefit: A Multi-Source Framework for Practical Deliberation."